

25STLC05275 25STLC05275

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC05275 Hearing Date: August 11, 2026 Dept: 26

TENTATIVE RULING:

Motion of Plaintiff

Cary Scheck, as Trustee of the Scheck Trust, to Reclassify from Limited to Unlimited is granted. This case is reclassified as an Unlimited Civil Case and transferred to the Reclassification/Transfer Desk for collection of fees and reassignment to an Unlimited Civil Court. Plaintiff is to pay the reclassification fee within ten (10) days of this order.

Analysis:

On July 9, 2025, Plaintiff Cary Scheck, as Trustee of the Scheck Trust ("Plaintiff"), filed this action for trespass, private nuisance, ejectment, injunctive relief, and declaratory relief against Defendants Joseph Beshenkovsky and Francesca Orrach ("Defendants"). Following service of the Summons and Complaint, the parties filed a stipulation extending the time for Defendants to file a responsive pleading until May 11, 2026. (Stip and Order, filed 04/20/26.) The Court signed the stipulation into order on April 20, 2026. (Ibid.)

Plaintiff filed the instant

Motion to Reclassify on May 8, 2026. The Motion was served on Defendants by electronic mail through their counsel on the same day. Defendants filed an Answer on May 11, 2026. No opposition to the Motion has been filed to date.

Discussion

The Motion to Reclassify is brought pursuant to Code of Civil Procedure section 403.040, which allows a plaintiff to file a motion for reclassification of an action within the time allowed for that party to amend the initial pleading. (Code Civ. Proc., § 403.040, subd. (a).) If the motion is made after the time for the plaintiff to amend the pleading, the motion may only be granted if (1) the case is incorrectly classified; and (2) the plaintiff shows good cause for not seeking reclassification earlier. (Code Civ. Proc., § 403.040, subd. (b).) In *Walker v. Superior Court* (1991) 53 Cal.3d 257, the California Supreme Court held that a matter may be reclassified from unlimited to limited only if it appears to a legal certainty that the plaintiff's damages will necessarily be less than the jurisdictional limit. (*Walker v. Superior Court* (1991) 53 Cal.3d 257, 262.) The jurisdictional limit, effective January 1, 2024, is \$35,000.00. (Code Civ. Proc., § 85, subd. (a).)

In *Ytuarte v. Superior Court* (2005) 129 Cal.App.4th 266, 278, the Court of Appeals examined the principles set forth in *Walker* and held that

“the court should reject the plaintiff's effort to reclassify the action as unlimited only when the lack of jurisdiction as an ‘unlimited’ case is certain and clear.” (Id. at 279.)

Plaintiff's burden is to present evidence to demonstrate a possibility that the damages will exceed [the jurisdictional limit] and the trial court must review the record to determine “whether a judgment in excess of [the jurisdictional limit] is obtainable.” (Ibid.)

Plaintiff filed the Motion prior to the time

Defendants filed their Answer, making it within the time to amend the Complaint without leave of court. Therefore, Plaintiff need not show good cause for the timing of the request to reclassify. The Motion is brought on the grounds that the Complaint seeks declaratory and permanent injunctive relief with respect to a property dispute between the parties. (Compl., ¶¶42, 45.) This type of declaratory and permanent injunctive relief cannot be awarded in the Limited Civil Court. (Code Civ. Proc., §§ 85, 86, 580.) Reclassification of the action to the Unlimited Civil Court, therefore, is appropriate.

Conclusion

Motion of

Plaintiff Cary Scheck, as Trustee of the Scheck Trust, to Reclassify from Limited to Unlimited is granted. This

case is reclassified as an Unlimited Civil Case and transferred to the
Reclassification/Transfer Desk for collection of fees and reassignment to an
Unlimited Civil Court. Plaintiff is to pay the reclassification fee within ten
(10) days of this order.

Moving party to give notice.